

25NNCV01903 25NNCV01903

County: los-angeles

Division: Civil Law and Motion

Department: 3

Hearing date: 2026-08-06

Motion: MOTION TO BE RELIEVED

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Case Number: 25NNCV01903 Hearing Date: August 6, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

JANET LYNN NICKERMAN, et al.,

Plaintiff(s),

vs.

GAMAL

MOHAMED ELSAYED, et al.,

Defendant(s).

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CASE NO.: 25NNCV01903

[TENTATIVE]

ORDER RE: MOTION TO BE RELIEVED

Dept.

3

8:30

a.m.

August

6, 2026

Tyson

& Mendes LLP ("Tyson & Mendes") seeks to be relieved as counsel of record for defendants Lucky Star Logistics, Inc. ("Lucky Star") and Gamal Mohamed Elsayed ("Mr. Elsayed") (collectively, "Defendants") on grounds that the insurer has withdrawn coverage. Lucky Star has not communicated with Tyson & Mendes to continue its representation and Mr. Elsayed refused counsel's terms for continued retention. Absent a showing of resulting prejudice, an attorney's request for withdrawal should be granted. (People v. Prince (1968) 268 Cal.App.2d 398, 406.)

The Court notes that trial in this matter is set for February 8, 2027, and no prejudice will result from granting this motion. While Plaintiffs claim that counsel's motion to withdraw from representing Defendants is tactical and prejudicial, Plaintiffs cite to no case

law allowing them any standing to determine who should represent Defendants and Defendants themselves have not opposed Tyson & Mendes' motion. Moreover, Defendants' obligations to participate in discovery remain the same regardless whether they are represented by Tyson & Mendes.

However, the proposed order submitted with this motion is incomplete. Therefore, the hearing on this motion is CONTINUED to August 20, 2026 at 8:30 a.m. in Department 3 of the Alhambra Courthouse so that Tyson & Mendes can submit a proposed order checking Item 5b, listing its clients' addresses and phone numbers in Item 6, and identifying all upcoming hearings and proceedings in Items 7 through 9. The revised proposed order must be filed no later than 5 court days before the date of the hearing.

Dated
this 6th
day of August 2026

William A. Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.